

Kais Khan v. State of U.P.

Allahabad High Court · Division Bench · 14 October 2025 · Writ-C No. 35860 of 2025 · **Writ disposed; Clause 6.8 hearing directed subject to deposit of Rs. 10,000.**

HEADNOTE

Challenge to an electricity assessment and recovery citation of Rs. 90,991 disposed of without deciding the demand. Subject to deposit of Rs. 10,000, the consumer may apply to the Assessing Officer, who shall decide the objection by a reasoned speaking order after personal hearing and confrontation with adverse material under Clause 6.8 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Kais Khan challenged an assessment order dated 16 February 2024 and a recovery citation dated 30 April 2025 by which the distribution licensee sought to recover Rs. 90,991 towards electricity dues. He alleged that the assessment procedure had not been fully complied with and that no opportunity of hearing had been given before the demand was created. The High Court, without calling for a counter-affidavit, considered whether the writ should remain pending in those circumstances.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

hearing on disputed assessment

HOLDING

Where it is unclear whether assessment procedure was fully complied with and the consumer alleges that no opportunity of hearing was given before an electricity demand was created, the writ may be disposed of by directing that, subject to deposit of a specified amount towards the disputed demand, the consumer may apply to the Assessing Officer, who shall decide the objection by a reasoned speaking order after confronting the consumer with all adverse material and granting personal hearing, strictly in accordance with Clause 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE WAS FULLY COMPLIED WITH BEFORE THE DEMAND

Court recorded that it was not clear if assessment procedure had been fully complied. ¶ 3

NOT DECIDED — MERITS OF THE DEMAND OF RS. 90,991

Left to the Assessing Officer under Clause 6.8; the deposit remains subject to the final order. ¶ 5-6